

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

FELIPE CORDERO,

Plaintiffs,

-against-

SUMMONS

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER EDWIN PEREZ, SHIELD NO.:
012365, POLICE OFFICER DERRICK
D. LAMBERT, SHIELD NO.: 019011,
POLICE OFFICER JOSE M. SANTIAGO,
SHIELD NO.: 015912 and police
officers whose names are yet
unknown,

INDEX NO.:

Defendants.

TO THE ABOVE NAMED DEFENDANTS:

RECEIVED
11 NOV 29 AM 9:42
COUNTY CLERK
BRONX COUNTY

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if, the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: November 29, 2011
Defendants' address: 1 Police Plaza
New York, NY


ELLIOT H. FULD
930 Grand Concourse-Suite 1G
Bronx, NY 10451
(718) 410-4111

Notice: The object of this action is one for monetary damages due to false arrest, false imprisonment, malicious prosecution and federal civil rights violations.

Upon your failure to appear, judgment will be taken against you by default for the sum \$2,000,000.00 with interest from October 28, 2010 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

FELIPE CORDERO,

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER EDWIN PEREZ, SHIELD NO.:
012365, POLICE OFFICER DERRICK
D. LAMBERT, SHIELD NO.: 019011,
POLICE OFFICER JOSE M. SANTIAGO,
SHIELD NO.: 015912 and police
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FELIPE CORDERO, by his attorney, Elliot H. Fuld, complains of
the defendants and allege, upon information and belief as follows:

1. FELIPE CORDERO was, at the times of the incident described in
this Complaint, a resident of the City and State of New York, County
of Bronx.

2. As yet unnamed police officers were and at all times stated herein
and upon information and belief, are police officer with the New York
City Police Department with regards to the incidents described
herein.

3. As yet unnamed police officers were acting within the scope of their employment with the New York City Police Department with regards to the incidents described herein.

4. That at all times stated herein, these unnamed police officers, as employees of the New York City Police Department, were acting as agents, servants and/or employees of THE CITY OF NEW YORK.

5. THE CITY OF NEW YORK at all times herein mentioned, was and still is a municipal corporation, duly organized and existing in accordance with the laws of the State of New York.

AS AND FOR A FIRST CAUSE OF ACTION

6. On or about October 28, 2010, police officers forcibly seized and detained the Plaintiff herein in the area of 168th Street and Sheridan Avenue in Bronx County.

7. After detaining the Plaintiff, police officers arrested the Plaintiff.

8. Police officers accused and charged Plaintiff with felony charges of criminal sale of and criminal possession of a controlled

substance.

9. At the time of the arrest and detention those police officers who were present were aware or should have been aware that Plaintiffs did not commit that crime.

10. The arrest and detention of the Plaintiffs by those officers and the filing of criminal charges was without probable cause and without basis in law or in fact. Nevertheless, the Defendants imprisoned Plaintiff, continuously searched Plaintiff and compelled Plaintiff to become naked to allow the officers to conduct a strip-search and cavity search of Plaintiff.

11. On November 29, 2010, Plaintiff was acquitted of all criminal charges stemming from the false arrest that occurred as aforesaid when the District Attorney of Bronx County requested that the Supreme Court, Bronx County dismiss all charges against FELIPE CORDERO.

12. On or about December 20, 2010, Plaintiff, by counsel, served upon the Comptroller of the City of New York, Notices of Claim as required by the General Municipal Law.

13. That more than thirty (30) days have elapsed since the service of that Claim and the adjustment or payment thereof has been neglected or refused.

14. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based, which cause of action accrued upon the arrest of October 28, 2010 and dismissal of all charges on November 29, 2010.

15. As a result of the false arrest of Plaintiff by defendants, Plaintiffs demands judgment against the Defendants and was damaged in the amount of Two Million (\$2,000,000.00) Dollars.

AS AND FOR A SECOND CAUSE OF ACTION

16. Plaintiffs repeat all the allegations contained in paragraphs "1" through "15" inclusive as though more fully set forth herein.

17. As a result of Defendants' actions, Plaintiff was falsely imprisoned.

18. That at the time of Plaintiffs' imprisonment, Defendants, their agents, servants and/or employees knew or should have known that

Plaintiffs should not have been incarcerated.

19. That the Defendants, their agents, servants and/or employees failed, refused or neglected to undertake any measures which could have resulted in Plaintiffs' release.

20. That as a result of Defendants' action, Plaintiffs was compelled to, *inter alia*, lose employment and earning potential.

21. In view of the foregoing, Plaintiff has been damaged in the amount of Two Million (\$2,000,000.00) Dollars.

AS AND FOR A THIRD CAUSE OF ACTION

22. Plaintiffs repeat all the allegations contained in paragraphs "1" through "21" inclusive as though more fully set forth herein.

23. After Plaintiff's false arrest on October 28, 2010 and the malicious prosecution which followed, Plaintiff was required to make two appearances in Criminal Court.

24. That during the pendency of those charges, the Defendants were well aware that it did not appear that Plaintiffs had committed any crime.

25. Irrespective of that, the Defendants continued to pursue criminal charges against Plaintiffs, seeking to have the Plaintiffs plead guilty to a lesser charge.

26. Plaintiffs refused to plead guilty and November 29, 2010, all charges were dismissed.

27. The Defendants' prosecution of Plaintiffs were conducted with malice or with such reckless disregard for the true set of facts underlying the "complaint" that said reckless disregard constituted malice.

28. In view of the foregoing, Plaintiffs has been damaged in the amount of Two Million (\$2,000,000.00) Dollars.

AS AND FOR A FOURTH CAUSE OF ACTION

29. Plaintiffs repeat all the allegations contained in paragraphs "1" through "28" inclusive as though more fully set forth

herein.

30. The Defendants, their agents, servants and/or employees, were acting "under color of state law" as defined in 42 U.S.C. 1983 et seq. in committing the acts alleged herein.

31. Prior to and subsequent to this incident as aforesaid, the Defendants have evinced a practice and procedure of detaining and seizing young persons of Hispanic and/or minority descent without cause or justification.

32. The Defendants have made it their custom and practice to do so and in the process routinely deprived Plaintiff and other similarly situated of their civil rights.

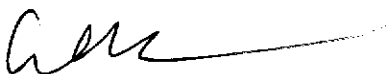
33. In performing that acts as aforesaid, the Defendants deprived Plaintiffs of their civil and constitutional rights as defined by 42 U.S.C. 1983 et seq and the law interpreting that section.

34. As a result of the foregoing, the Plaintiffs have been damaged in the amount of Two Million (\$2,000,000.00) Dollars.

WHEREFORE, Plaintiffs demand of the Defendants as follows:

- a. On the First Cause of Action, the sum of \$2,000,000.00; and
 - b. On the Second Cause of Action, the sum of \$2,000,000.00; and
 - c. On the Third Cause of Action, the sum of \$2,000,000.00; and
 - d. On the Fourth Cause of Action, the sum of \$2,000,000.00; and
- For punitive damages in the amount of \$1,000,000.00.

Dated: November 29, 2011


Elliot H. Fuld
Attorney for Plaintiffs
930 Grand Concourse-Suite 1G
Bronx, New York 10451
(718) 410-4111

STATE OF NEW YORK
COUNTY OF THE BRONX: ss

ELLIOT H. FULD, being duly sworn, deposes and says:

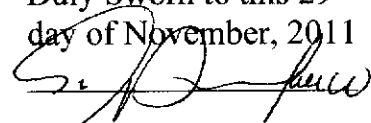
I am the attorney for FELIPE CORDERO herein, and I verify that all the statements contained in the attached Verified Complaint have been obtained through a review of documents pertaining to this case and from conversations with the Plaintiff and, upon information and belief, are true. I am making this Verification because, at present, Defendant is not presently in the County wherein I maintain my office.

Dated: November 29, 2011



ELLIOT H. FULD

Duly Sworn to this 29th
day of November, 2011


Ana Palanco
Notary Public State of New York
No 01PO6133973
Qualified in Bronx County
Commission Expires Sept 19, 2013